

introducing evidence at trial in support of the account claimed. (*McCarthy v. Mt. Tecarte Land & Water Co.* (1896) 110 Cal. 687, 693.) The exclusion of evidence is not mandatory, and, in light of the foregoing analysis, the Court would not be inclined to exercise its discretion to order the evidence excluded here.

Based on the foregoing, the Motion is DENIED. This ruling is without prejudice to Defendant's rights under the Discovery Act to request the specific information sought by his purported Demand.

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Elena Flores Beteta v. French Laundry Restaurant Corporation et al

26CV000626

DEFENDANT'S MOTION TO COMPEL ARBITRATION AND STAY THE PROCEEDINGS

TENTATIVE RULING: The motion is GRANTED. Plaintiff's request for an evidentiary hearing is DENIED. Plaintiff is ordered to remit her individual PAGA claim to arbitration forthwith. Plaintiff's representative PAGA claim is STAYED pending completion of the arbitration. Defendants' request for sanctions under sections 128.5 and 128.7 is DENIED. A Review Hearing Re: Status of Arbitration is set for December 15, 2026, at 8:30 a.m. in Dept. A. The Case Management Conference on August 27, 2026 is VACATED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendants French Laundry Restaurant Corporation; French Laundry Partners L.P.; and KRM, INC. d/b/a Thomas Keller Restaurant Group (collectively "Defendants") move, pursuant to the Federal Arbitration Act ("FAA") Code of Civil Procedure sections 128.5 and 128.7,⁴ for an order compelling the arbitration of Plaintiff Elena Flores Beteta's ("Plaintiff") individual Private Attorneys General Act ("PAGA") claims against Defendants and staying Plaintiff's representative PAGA claims pending completion of the arbitration. Defendants further move, pursuant to sections 128.5 and 128.7, to recover costs and fees associated with bringing the instant Motion to Compel Arbitration, in the amount of \$5,000.

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

B. LEGAL STANDARD

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by *prima facie* evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.) The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*).)

C. DISCUSSION

1. The Parties Entered into an Arbitration Agreement Which Covers Plaintiff's Individual PAGA Claim

Plaintiff's complaint is titled "Representative Action Complaint" and asserts a single cause of action for "Violation of the Private Attorneys General Act of 2004, Cal. Labor Code §2698 *et seq.*" "on behalf of herself, all aggrieved employees, and the State of California as a Private Attorneys General."

Defendants argue that Plaintiff's individual PAGA claim must be resolved in individual arbitration consistent with *Viking River Cruises, Inc. v. Moriana* (2022) 569 U.S. 639 (*Viking River*) and *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104.

The Court finds that Defendants have presented evidence sufficient to make a *prima facie* showing that Plaintiff's individual PAGA claim is covered by the Mutual Arbitration Agreement ("Arbitration Agreement"), signed by Plaintiff on January 20, 2024. (See Declaration of Mariel Rogers ("Rogers Decl.") ¶ 8, Exh. A; see also Mem., pp. 9-14.)

Based on the foregoing, the Court finds that Defendants met their burden of proving the existence of an agreement between Plaintiff and Defendants to arbitrate and that the scope of the Arbitration Agreement covers Plaintiff's individual PAGA claim in this action.

Plaintiff appears to concede these issues by failing to address or dispute them through the Opposition. Through Defendants' Reply, they address Plaintiff's claimed inability to understand English as disputing that she entered into the Arbitration Agreement. (Reply, pp. 7-9.) However, that is not how the Court understood Plaintiff's Opposition, which nowhere addresses or disputes the *existence* of the Arbitration Agreement and, instead, the facts asserted regarding her English/Spanish capabilities were only analyzed with respect to unconscionability.

2. Plaintiff Fails to Show that the Arbitration Agreement is Unconscionable

“Both procedural and substantive unconscionability must be present before a contract or term will be deemed unconscionable.” (*Serafin v. Balco Properties Ltd., LLC*, 235 Cal.App.4th 165, 178.) “Both, however, need not be present to the same degree. A sliding scale is applied so that the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.* [internal quotations omitted].) As noted, the opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.)

a. Plaintiff Fails to Show Procedural Unconscionability

Plaintiff argues that the Arbitration Agreement is procedurally unconscionable because Defendants knew Plaintiff required Spanish translation in order to understand English documents; however, Defendants presented Plaintiff with an English-language legal document, failed to provide a Spanish translation, and failed to explain the rights she was purportedly waiving. (Opposition, pp. 8-10.) In support of this argument, Plaintiff relies entirely on her Declaration. (*Ibid.*)

Through the Reply, Defendants note that Plaintiff’s Declaration is in Spanish and that Plaintiff failed to file a certified translation with her Opposition. Defendants therefore object, in whole, to Plaintiff’s Declaration. The objection is SUSTAINED for the following reason.

“Exhibits written in a foreign language must be accompanied by an English translation, *certified under oath* by a qualified interpreter.” (Cal. Rules of Ct. rule 3.1110(g). *Italics added.*) “Whenever, under any law of this state or under any rule, regulation, order or requirement made pursuant to the law of this state, any matter is required . . . to be supported, evidenced, established, or proved by the sworn . . . *oath* . . . in writing of the person making the same . . . such matter may with like force and effect be supported, evidenced, established or proved by the unsworn statement, declaration, verification, or certificate, in writing of such person which recites that it is certified or declared by him or her to be true under penalty of perjury, is subscribed by him or her, and (1), if executed within this state, states the date and place of execution, or (2), if executed at any place, within or without this state, states the date of execution and that it is so certified or declared under the laws of the State of California.” (Code Civ. Proc., § 2015.5. *Italics added.*)

There is no certification, let alone code-compliant certification, with Plaintiff’s Opposition, nor is there anything tying the Spanish Declaration signed by Plaintiff to the unsigned English Declaration directly following it. As such, there is no competent evidence, in the Court’s file, of the facts stated through Plaintiff’s English Declaration. Because Plaintiff’s defense of procedural unconscionability is entirely based upon the facts within Plaintiff’s Declaration, there is no competent evidence in support of Plaintiff’s defense.

b. Plaintiff Fails to Show Substantive Unconscionability

The foregoing conclusion prevents a finding of unconscionability. However, the Court elects to briefly address the substantive unconscionability piece.

Plaintiff argues that the Arbitration Agreement is substantively unconscionable because it limits discovery and lacks mutuality. (Opposition, pp. 9-11.)

With respect to the discovery, Plaintiff argues that Section 6 provides that “[e]ach party may take the deposition of two (2) individual fact witnesses,” and permits only ten interrogatories, subject to the parties’ consent or Arbitrator’s exclusive authority to grant additional discovery. In support, Plaintiff cites to *Fitz v. NCR Corp.* (2004) 118 Cal.App.4th 702, 717-19, *Mercuro v. Superior Court* (2002) 96 Cal.App.4th 167, 183, and *Nunez v. Cycad Mgmt LLC* (2022) 77 Cal.App.5th 276.

In Opposition, Defendants argue that reasonable limitations on discovery are routinely upheld particularly where the arbitrator retains discretion to expand discovery. (Reply, pp. 11-12, citing *Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, 983 and *Ramirez v. Charter Commc’ns, Inc.* (2024) 16 Cal.5th 478, 506-07.) Defendants also distinguish the authority upon which Plaintiff relies.

The Court finds that *Dotson* and *Ramirez* compel this Court to find that the abovementioned limitations on discovery are not unconscionable. “[A]rbitration is meant to be a streamlined procedure. Limitations on discovery, including the number of depositions, is one of the ways streamlining is achieved. In *Armendariz*, the court stated that the parties are entitled to discovery sufficient to vindicate their claims. The court also acknowledged that discovery limitations are an integral and permissible part of the arbitration process. ‘Adequate’ discovery does not mean ‘unfettered’ discovery. *Armendariz* specifically recognized that parties may agree to something less than the full panoply of discovery permitted under the California Arbitration Act.” (*Dotson, supra*, 181 Cal.App.4th at 983, internal citations omitted; see also *Ramirez, supra*, 16 Cal.5th at 507 [where an agreement, which limits discovery to four depositions, 20 interrogatories, and 15 requests for documents, can be “construed to allow the arbitrator to order additional discovery as needed to allow a full and fair exploration of the issues in dispute, the discovery provisions would be valid. ... Such an interpretation of the provisions eliminates any unconscionability.”].)

With respect to the lack of mutuality, Plaintiff argues that, although the agreement purports to require arbitration of most employment-related disputes, Section 3 preserves judicial remedies for the types of claims an employer is most likely to bring while requiring employees to arbitrate virtually all statutory employment claims. (Opposition, p. 11.) Section 3, entitled, “Limitations on how this Agreement Applies and Claims not Covered by this Agreement,” provides: “either party may apply to a court of competent jurisdiction for temporary or preliminary injunctive relief in connection with an arbitrable controversy, including, without limitation, any disputes arising out of or related to the Employee Confidentiality, Non-Disclosure and Non-Solicitation Agreement (or similar agreement).” (MAA § 3.) Plaintiff contends that, because those are claims asserted by the employer and not the employee, the Agreement is impermissibly one-sided in favor of the employer.

The Court does not find that Section 3 is impermissibly one-sided. The purportedly employer-sided disputes are included “without limitation,” and the sentence clearly allows *either*

party to apply for injunctive relief in connection with *an arbitrable controversy*, which includes “any and all disputes that may arise between [the parties].” (See MAA §§ 2-3. Emphasis added.) Moreover, even if this section could be construed as one-sided, a provision is not “unfairly one-sided merely because one side is, as a practical matter, more likely to make use of it.” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1248, fn. 4.0.)

Plaintiff’s request for an evidentiary hearing under Rules of Court, rule 3.1306 and *Rosenthal, supra*, 14 Cal.4th 394 is DENIED, on the grounds that Plaintiff fails to articulate any good cause warranting the extraordinary request for live testimony, as opposed to standard declarations and documentary evidence. (See Rules of Court, rule 3.1306(a).) Plaintiff’s own failure to certify the translation of her declaration does not belatedly serve as good cause.

Based on the foregoing, the motion is GRANTED.

Defendants’ request for sanctions under sections 128.5 and 128.7 is DENIED on the grounds that Defendants’ only discussion of the authority or basis therefor is in a footnote in their Memorandum.

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In The Matter of Alyssa McIntosh

26CV000811

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Nicolas F De Pierola Alvarado

26CV000983

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on May 08, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court’s file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to July 21, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.